

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.:

Date Purchased:

-----X  
IHANA SAMPSON,

Plaintiff(s) Designate(s)

Kings

County as the place of trial.

Plaintiff(s),

The basis of the venue is  
Situs of Occurrence

-against-

SUMMONS

with Notice

POLICE OFFICER AMIR HUSSAIN, THE CITY OF  
NEW YORK, JASON MCKEAN, M.D., SCOTT PASCAL,  
M.D., ROHAN DESAI, M.D. and BROOKDALE  
UNIVERSITY HOSPITAL MEDICAL CENTER,

Plaintiff(s) reside(s) at  
903 North Front Street,  
Allentown, PA

Defendant(s).

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To the above named Defendant(s)

**You are hereby summoned** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 15, 2020

ZUCKER &amp; REGEV, P.C.

Attorney(s) for Plaintiff(s)

Office and Post Office Address

186 Joralemon Street, Suite 1010

Brooklyn, NY 11201

(718) 624-1211

Defendant's address:

Police Officer Amir Hussain  
69<sup>th</sup> Precinct  
9720 Foster Avenue  
Brooklyn, NY 11236

The City of New York  
100 Church Street  
New York, NY 10007

**Notice:** The nature of this action is negligence

Jason McKean, M.D.  
Scott Pascal, M.D.  
Rohan Desai, M.D.  
Brookdale University Hospital Medical Center  
One Brookdale Plaza  
Brooklyn, NY 11212

The relief sought is compensatory damages

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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IHANA SAMPSON,

**VERIFIED COMPLAINT**

Plaintiff,

Index No.:

-against-

POLICE OFFICER AMIR HUSSAIN, THE CITY OF NEW  
YORK, JASON MCKEAN, M.D., SCOTT PASCAL, M.D.,  
ROHAN DESAI, M.D. and BROOKDALE UNIVERSITY  
HOSPITAL MEDICAL CENTER,

Defendants.  
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Plaintiff, IHANA SAMPSON, by her attorneys, ZUCKER & REGEV, P.C.,  
complaining of the defendants herein, respectfully shows to this Honorable Court and alleges,  
upon information and belief:

1. The situs of the occurrences herein was the County of Kings, City and State of New York.
2. On or about the 20<sup>th</sup> day of October, 2019, plaintiff IHANA SAMPSON caused to be served upon defendant THE CITY OF NEW YORK a duly executed Notice of Claim setting forth the material facts underlying the within action pursuant to the General Municipal Law of the State of New York.
3. On or about the 7<sup>th</sup> day of January, 2020, plaintiff duly submitted to oral examination by counsel for defendant THE CITY OF NEW YORK with respect to the claims made in the within action pursuant to the General Municipal Law of the State of New York.

4. More than thirty days have elapsed since service of the said Notice of Claim and defendant THE CITY OF NEW YORK has failed to settle and/or adjust the claims made herein.

5. Plaintiff has duly complied with all of the prerequisites to the commencement of the within action against defendants POLICE OFFICER AMIR HUSSAIN and THE CITY OF NEW YORK pursuant to the General Municipal Law of the State of New York.

6. Upon information and belief, at all times hereinafter mentioned, defendant, BROOKDALE HOSPITAL MEDICAL CENTER (hereinafter BUHMC) was and still is a corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. Upon information and belief, at all times hereinafter mentioned, defendant BUHMC owned a hospital facility located at One Brookdale Plaza, Brooklyn, New York.

8. Upon information and belief, at all times hereinafter mentioned, defendant BUHMC operated a hospital facility located at One Brookdale Plaza, Brooklyn, New York.

9. Upon information and belief, at all times hereinafter mentioned, defendant BUHMC hired various physicians, nurses, technicians and other individuals for the purpose of rendering medical care and treatment to members of the public, including the plaintiff herein.

10. Upon information and belief, at all times hereinafter mentioned, defendant BUHMC held itself out to the public, and more particularly to plaintiff's decedent, rendering and being capable of rendering medical care and treatment in accordance with standards of good and accepted medical and hospital practice at its said hospital facility.

11. Upon information and belief, at all times hereinafter mentioned, defendant JASON MCKEAN, M.D. (hereinafter MCLEAN) was and still is a physician duly licensed to practice medicine in the State of New York.

12. Upon information and belief, at all times hereinafter mentioned, defendant MCKEAN was employed by defendant BUHMC.

13. Upon information and belief, at all times hereinafter mentioned, defendant MCKEAN was employed by defendant BUHMC.

14. Upon information and belief, at all times hereinafter mentioned, defendant MCKEAN held himself out to the public, and more particularly to plaintiff's decedent herein, as a specialist in the field of orthopedic surgery and having the requisite skill and knowledge of physicians practicing in that field.

15. Upon information and belief, at all times hereinafter mentioned, defendant MCKEAN rendered treatment to the plaintiff in the course of his employment for and/or in furtherance of the business of defendant BUHMC.

16. Upon information and belief, at all times hereinafter mentioned, defendant DAVID PASCAL, M.D. (hereinafter PASCAL) was and still is a physician duly licensed to practice medicine in the State of New York.

17. Upon information and belief, at all times hereinafter mentioned, defendant PASCAL was employed by defendant BUHMC.

18. Upon information and belief, at all times hereinafter mentioned, defendant PASCAL was employed by defendant BUHMC.

19. Upon information and belief, at all times hereinafter mentioned, defendant PASCAL held himself out to the public, and more particularly to plaintiff's decedent herein, as a specialist in the field of orthopedic surgery and having the requisite skill and knowledge of physicians practicing in that field.

20. Upon information and belief, at all times hereinafter mentioned, defendant PASCAL rendered treatment to the plaintiff in the course of his employment for and/or in furtherance of the business of defendant BUHMC.

21. Upon information and belief, at all times hereinafter mentioned, defendant ROHAN DESAI, M.D. (hereinafter DESAI) was and still is a physician duly licensed to practice medicine in the State of New York.

22. Upon information and belief, at all times hereinafter mentioned, defendant DESAI was employed by defendant BUHMC.

23. Upon information and belief, at all times hereinafter mentioned, defendant DESAI was employed by defendant BUHMC.

24. Upon information and belief, at all times hereinafter mentioned, defendant DESAI held himself out to the public, and more particularly to plaintiff's decedent herein, as a specialist in the field of orthopedic surgery and having the requisite skill and knowledge of physicians practicing in that field.

25. Upon information and belief, at all times hereinafter mentioned, defendant DESAI rendered treatment to the plaintiff in the course of his employment for and/or in furtherance of the business of defendant BUHMC.

26. Upon information and belief, defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

27. Upon information and belief, defendant CITY was at all times relevant herein authorized to maintain a police department to act as its agent in the area of law enforcement.

28. Upon information and belief, at all times hereinafter mentioned, defendant POLICE OFFICER AMIR HUSSAIN (hereinafter "HUSSAIN") was a duly appointed police officer, servant, employee and agent of defendant CITY .

29. Upon information and belief, at all times hereinafter mentioned, defendant HUSSAIN was acting under color of state law in the course and scope of his duties and function as an officer, agent, servant and/or employee of defendant CITY, was acting for, on behalf of, and with the power and authority vested in him by defendant CITY, and was engaging in conduct incidental to the performance and in the course of his duties as a police officer.

30. At all times hereinafter mentioned, plaintiff was the operator of a 2009 Toyota bearing Pennsylvania State registration number GXM3189 for the year 2019.

31. Upon information and belief, at all times hereinafter mentioned, East 80<sup>th</sup> Street at or near its intersection with Avenue J was a public highway and thoroughfare in the Brough of Brooklyn, County of Kings, State of New York.

32. On or about the 23<sup>rd</sup> day of July, 2019, on East 80<sup>th</sup> Street at or near its intersection with Avenue J, Brooklyn, New York, defendant HUSSAIN was in pursuit of the aforesaid 2006 Ford motor vehicle.

33. On or about the 23<sup>rd</sup> day of July, 2019, plaintiff was admitted to defendant BUHMC for treatment of the injuries sustained as a result of being struck by the aforesaid 2006 motor vehicle.

34. On and between the 23<sup>rd</sup> day of July, 2019 and the 15<sup>th</sup> day of August, 2019, plaintiff was continuously confined to defendant BUHMC for treatment of said injuries.

35. During the course of her said hospital confinement, plaintiff received medical and surgical treatment from defendant MCKEAN, and from various physicians and other individuals employed by and/or acting in furtherance of business of defendant BUHMC.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST**  
**DEFENDANTS HUSSAIN AND CITY**

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "35" above, with the same force and effect as if set forth herein more fully at length.

37. The aforesaid motor vehicle accident was due to the negligence of defendant HUSSAIN in conducting a pursuit of the said 2006 motor vehicle in a careless manner and in reckless disregard for the safety of other motorists, including the plaintiff herein, and without any negligence or fault on the part of the plaintiff contributing thereto.

38. As a result of the negligence of defendants HUSSAIN and CITY, plaintiff was caused to sustain serious, severe, and extensive personal injuries and has suffered and will continue to suffer physical pain and mental anguish.

39. Plaintiff is a qualified person for the purpose of commencing the within action, by virtue of the fact that plaintiff's decedent sustained serious injuries as defined by Section 5102(d) the Insurance Law of the State of New York.

40. The limitation of liability provisions of C.P.L.R. Article 16 do not apply to the claims herein against defendants HUSSAIN and CITY on the grounds that the liability of said defendants arises from the use, operation, and/or ownership of a motor vehicle and pursuant to the doctrine of respondeat superior.

41. By reason of the foregoing, plaintiff has been caused to suffer damages in an amount that exceeds the jurisdiction of all other courts that would otherwise have jurisdiction herein.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS  
MCKEAN, PASCAL, DESAI AND BUHMC**

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "41" above with the same force and effect as if fully set forth herein at length.

43. The aforesaid medical care and treatment rendered to the plaintiff by defendants MCKEAN and BUHMC, their agents, servants, and/or employees, failed to conform with standards of good and accepted medical and surgical practice.

44. As a result of the negligence, malpractice, and wrongdoing of defendants MCKEAN and BUHMC as aforesaid, plaintiff was caused to sustain serious, severe, and extensive personal injuries and has suffered and will continue to suffer physical and mental anguish.



45. The limitation of liability provisions of C.P.L.R. Article 16 do not apply to the claims herein against defendants MCKEAN and BUHMC on the grounds that the liability of said defendants on the grounds that said defendants acted knowingly and in concert and pursuant to the doctrine of respondeat superior.

46. By reason of the foregoing, plaintiff has been caused to suffer damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against defendants HUSSAIN and CITY on the First Cause of Action, and against defendants MCKEAN and BUHMC on the Second Cause of Action in amounts that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction herein, together with interest, costs and disbursements of this action.

ZUCKER & REGEV, P.C.  
Attorneys for Plaintiff  
Office and Post Office Address  
186 Joralemon Street, Suite 1010  
Brooklyn, New York 11201  
(718) 624 - 1211

STATE OF NEW YORK)  
: SS.:  
COUNTY OF KINGS )

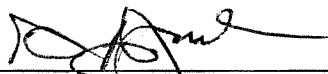
I, the undersigned, am an attorney admitted to practice in the Courts of New York State and say that: I am the attorney of record or of counsel with the attorney(s) of record, for the plaintiff. I have read the annexed COMPLAINT, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Plaintiff resides in a county other than the county where your affirmant's law office is located.

The reason I make this affirmation instead of plaintiff is that deponent's office file contains the information upon which the allegations herein are based.

I affirm the foregoing statements are true under the penalties of perjury.

Dated: Brooklyn, New York  
October 15, 2020

  
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GARY A. ZUCKER

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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IHANA SAMPSON,

Plaintiff,

-against-

POLICE OFFICER AMIR HUSSAIN, THE CITY OF NEW  
YORK, JASON MCKEAN, M.D., and BROOKDALE  
UNIVERSITY HOSPITAL MEDICAL CENTER,  
Defendants.

**CERTIFICATE OF  
MERIT PURSUANT TO  
CPLR 3012-a**

Index No.:

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GARY A. ZUCKER, an attorney admitted to practice law in the State of New York,  
does hereby certify, pursuant to CPLR 3012-a (1):

I a member with the firm of **ZUCKER & REGEV, P.C.**, attorneys for the plaintiff in  
the above-entitled action and hereby certify that I have reviewed the facts of this case and  
have consulted with a physician licensed to practice medicine in this State who, I reasonably  
believe, is knowledgeable in the relevant issues involved in this action, and have concluded  
on the basis of such review and consultation that there is a reasonable basis for  
commencement of this action.

Dated: Brooklyn, New York  
October 15, 2020

  
\_\_\_\_\_  
GARY A. ZUCKER